

Court No. - 20

Case :- WRIT - C No. - 3944 of 2022

Petitioner :- Kapildev Awasthi

Respondent :- State Of U.P. Thru.Prin.Secy.Deptt. Of Energy
Govt. Of U.P. Civil Sectr. Lko. And Others

Counsel for Petitioner :- Ganesh Kumar Gupta,Amit Kumar
Pathak,Madhukar Ojha

Counsel for Respondent :- C.S.C.,Aprajita Bansal

Hon'ble Jaspreet Singh,J.

Hon'ble Karunesh Singh Pawar,J.

List of fresh cases is being revised.

None appears for the petitioner to press this petition. However,
learned standing counsel for the State-respondents is present.

List this matter in third week of July, 2022, as fresh.

(Karunesh Singh Pawar, J.) (Jaspreet Singh, J.)

Order Date :- 29.6.2022

Rakesh/-

Court No. - 2

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Govt. Of U.P. Civil Sectr. Lko. And Others

Counsel for Petitioner :- Ganesh Kumar Gupta,Amit Kumar
Pathak,Madhukar Ojha,Shachindra Pratap Singh

Counsel for Respondent :- C.S.C.,Aprajita Bansal

Hon'ble Devendra Kumar Upadhyaya,J.

Hon'ble Shree Prakash Singh,J.

On the prayer made by the learned counsel for the petitioner in the first half of the day, this petition was ordered to be listed today itself for the reason that the petitioner's domestic electricity connection has been disconnected.

Heard Shri Sachindra Pratap Singh, learned counsel for the petitioner, learned State Counsel and Ms. Aprajita Bansal, learned counsel representing the Madhyanchal Vidyut Vitran Nigam Limited (herein after referred to as 'MVVNL').

Ms. Aprajita Bansal, learned counsel representing MVVNL has stated that the petitioner is a domestic consumer of electricity, however, it is the allegation against him that in an inspection of the premises, where the petitioner enjoyed the electricity connection, conducted on 13.09.2021, it was found that the petitioner was consuming the electricity directly from the pole by bypassing the meter. It is further alleged that in the said inspection certain irregularities were found, based on which the provisional assessment order, was passed on 21.09.2021 wherein it was stated that the petitioner, apart from the value of the electricity to the tune of Rs.2,17,728/-, is liable to deposit Rs. 8,000/- towards compounding charges. The said provisional assessment order dated 21.09.2021 has been annexed with the writ petition as Annexure-2, though it has been submitted that the same was never served upon the petitioner, who procured the same from the office of the respondent in the last week of April, 2022.

Ms. Bansal, learned counsel representing the MVVNL has further stated that since no objection to the provisional assessment order dated 21.09.2021 was made by the petitioner, the assessment was finalized by means of an order dated 16.11.2021 whereby the petitioner was required to deposit a total sum of Rs.2,25,728/-. The said order dated 16.11.2021 also provides that in case the petitioner fails to make the payment of

the amount mentioned therein, recovery proceedings would be initiated against him under the relevant provisions.

Ms. Bansal, learned counsel representing the MVVNL has submitted, on the basis of instructions received, that both the orders, namely, the provisional assessment order dated 21.09.2021 and final assessment order dated 16.11.2021 were served through registered post to the petitioner, however, since he did not make any objection to the provisional assessment order, the assessment was finalized and thereafter on account of non-deposit of the amount due against the petitioner, recovery proceedings were initiated. It has further been stated that the recovery certificate was, thus, sent to the Collector, Lucknow who has initiated recovery proceedings for recovering the amount as arrears of land revenue.

As observed above, submission of the learned counsel for the petitioner is that the petitioner was never served with a copy of the provisional assessment order dated 21.09.2021 and thus has been deprived of his statutory right of filing objections under section 126(3) of Electricity Act, 2003 read with Paragraph 6.8 of U.P. Electricity Supply Code, 2006.

On being asked, Ms. Bansal, learned counsel representing MVVNL has produced before us a photocopy of the envelop which allegedly contained the final assessment order dated 16.11.2021, however, from a perusal of the same, it appears that the said envelop containing final assessment order dated 16.11.2021 was returned undelivered. No document could be produced by MVVNL which can establish service of the provisional assessment order dated 21.09.2021 upon the petitioner. The photocopy of the envelop allegedly containing the order dated 16.11.2021 is taken on record.

From what has been recorded above, it appears that the petitioner was not served with a copy of the provisional assessment order dated 21.09.2021 and accordingly in terms of the provisions contained in section 126 (3) of the Electricity Act, 2003 and clause 6.8 of U.P. Electricity Supply Code, 2006 he has been denied opportunity to make objection to the provisional assessment. It is submitted on behalf of the petitioner that while conducting the inspection on 13.09.2021 the respondent-authorities did not follow the rules and as such based on such unlawful inspection of the premises of the petitioner, the demand raised by the respondent can not be acted upon.

Without entering into the allegation regarding the correctness, lawfulness or otherwise of the inspection carried on 13.09.2021,

we find that the provisional assessment order dated 21.09.2021 has not been served upon the petitioner. Accordingly, this petition is finally **disposed of** with the following directions:-

(i) The petitioner shall furnish reply to the provisional assessment order dated 21.09.2021 within a week from today to the competent authority of MVVNL.

(ii) The competent authority, after receiving the reply against the provisional assessment order from the petitioner, shall consider the said reply and accordingly pass the final assessment order within two weeks therefrom. Once the final assessment order is passed, the demand based on the said final assessment order shall be made.

(iii) Till final decision in terms of this order is made by the competent authority of MVVNL, recovery of the amount as shown in the final assessment order dated 16.11.2021 shall not be made from the petitioner. However, the petitioner is said to have deposited the undisputed amount, i.e. an amount of Rs.35,580/- on 16.05.2022 and accordingly the petitioner shall make payment of the future bills after 16.05.2022 as and when the amount becomes due against him.

(iv) We have been informed that the electricity of the petitioner's premises was disconnected on 03.09.2021. Accordingly, we direct that the petitioner shall make deposit of the amount against the electricity which might have been consumed by him after 16.05.2022 till 31.08.2022 within a week from today.

(v) The electricity of the domestic connection of the petitioner shall be restored by today evening, however, in case the amount as ordered above is not deposited by the petitioner within a week from today, it shall be open to the authorities of MVVNL to disconnect the same.

Order Date :- 5.9.2022

akhilesh/